

		the investigator are also necessary to evaluate what editing an investigator has performed on the surveillance footage, and is necessary for Plaintiff to be able to fully evaluate whether the surveillance footage accurately captures Plaintiff on a particular day. (Mtn. at 10:17-23.) Plaintiff's arguments are not compelling. The same argument could be made of any evidence offered for impeachment purposes. Further, Defendant has already disclosed the date and location of the footage, and Plaintiff, as its subject, should already be aware of her own actions. <i>Accordingly, the motion is DENIED.</i>
202	Maple Iron Grove LLC vs. Hudson, 25-01453870	Fortra Law through Steven Ernest (Counsel for MAPLE IRON GROVE LLC) seeks an order relieving it from acting as counsel of record. (ROA 103) All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney Steven E. Ernest appears to demonstrate good cause for granting the motion based on the allegations that there has been an irrevocable breakdown in the relationship which prevents Fortra Law from continuing to represent the client. Thus, the Motion to Be Relieved as Counsel of Record filed by Fortra Law through Steven Ernest is GRANTED. Attorney to update the proposed order (ROA 104) to delete past law and motion dates and include any new dates. Attorney is relieved as counsel of record upon filing the proof of service of the order. <i>Moving attorney to give notice.</i>
203	KHATSKO vs. OVCHAROV, 26-01572047	Plaintiff Vitali Khatsko ("Plaintiff") applies for right to attach orders and orders for issue of writs of attachment against defendants Dmitry Ovcharov and Zorka Impex, Inc. (together, "Defendants"). "Except as otherwise provided by statute, an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Proc., § 483.010(a).) Pursuant to section 484.090(a), "[a]t the hearing, the court shall consider the showing made by the parties appearing and shall issue a right to attach order, which shall state the amount to be secured by the attachment determined by the court in accordance with Section 483.015 or 483.020, if it finds all of the following:

		(1) The claim upon which the attachment is based is one upon which an attachment may be issued. (2) The plaintiff has established the probable validity of the claim upon which the attachment is based. (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based. (4) The amount to be secured by the attachment is greater than zero.” Plaintiff argues he has shown a probable validity of prevailing on his causes of action for breach of written and oral contract against Ovcharov because Ovcharov’s Telegram messages requesting and confirming each advance, the Alibaba.com order confirmations, and Ovcharov’s later written acknowledgements of the debt constitute a written contract between himself and Ovcharov. The Telegram messages upon which Plaintiff relies are submitted in a foreign language with no translation. California Rules of Court, rule 3.1110(g) provides: “Exhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter.” Because the Telegram messages are not accompanied by an English translation by a qualified interpreter, they are inadmissible. The Alibaba.com order confirmations are emails from Alibaba Customer Service to Plaintiff regarding various payments and orders. Nothing in those emails evidences the existence of any contract between Plaintiff and Ovcharov. Exhibit 12 is a May 4, 2026 email from an attorney, Pavel Kolmogorov, on behalf of Zorka Impex in response to Plaintiff’s May 1 letter. In that letter, Mr. Kolmogorov asserts that “the obligation at issue” is that of Zorka Impex and not Ovcharov individually and that Zorka Impex “confirms that it has an outstanding financial obligation to Mr. Vitali Khatsko arising from payments made by him in January-February 2023 that were used to fund inventory purchases for Zorka Impex, Inc.’s business operations.” Mr. Kolmogorov proposed that Zorka Impex and Plaintiff enter into a formal written loan agreement to resolve the matter and avoid litigation. This letter does not establish the existence of any contract between Plaintiff and Ovcharov. Because Plaintiff has failed to demonstrate the existence of any express or implied contract with Ovcharov, the application as to Ovcharov is DENIED. The Court finds that the May 4 letter does, however, demonstrate that Zorka Impex at least impliedly promised to repay the alleged debt in the principal balance of \$42,948.08
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		alleged in the Complaint, which can support a right to attachment. In <i>Klein v. Benaron</i> (1967) 247 Cal.App.2d 607, the Court of Appeal held that an attachment was proper despite the nonexistence of any express or implied in fact contract where the facts revealed that the plaintiff had delivered \$50,500 due to the defendant's misrepresentations and broken promises. (Id. at p. 610 ["the first cause of action is one in fraud . . . but its facts . . . presents [sic] a case where the law implies a promise on defendant's part to repay it."].) Further, Plaintiff's cause of action for unjust enrichment can support an attachment. (See <i>Santa Clara Waste Water Co. v. Allied World Nat. Assurance Co.</i> (2017) 18 Cal.App.5th 881, 886 [affirming attachment based on unjust enrichment claim].) Here, the May 4 letter demonstrates that Plaintiff conferred a benefit on Zorka Impex and that Zorka Impex has acknowledged the indebtedness and it would be inequitable to allow Zorka Impex to retain the benefit. Thus, the Court finds that Plaintiff has established the probable validity of its unjust enrichment claim against Zorka Impex and that claim is one upon which attachment may be issued. Further, the amount to be secured by the attachment is greater than zero and the Court finds that the attachment is not sought for any purpose other than recovery on Plaintiff's claim. In light of the above, Plaintiff's Application for Right to Attach Order and Order for Issue of Writ of Attachment as to Zorka Impex is GRANTED in the amount of \$42,948.08. Plaintiff shall file an undertaking of \$10,000. (Code Civ. Proc., § 489.220(a).) <i>Moving party to give notice.</i>
204	Geraci Legal Corporation vs. BriteCity, LLC, 25-01523031	<u>Demurrer</u> Defendants Britecity, LLC, Chad Gniffke, and Scott Senerchia ("Defendants") demur to all twelve causes of action asserted in Plaintiffs Geraci Legal Corporation and Geraci LLP's Complaint. Initially, Defendants assert that Plaintiffs are barred from pursuing this action based on the sham pleading doctrine. Per Defendants, Plaintiffs pled inconsistent facts in a prior action, <i>Anthony Geraci v. Geraci LLP et al.</i> Orange County Superior Court Case No. 25-01500841 ("First Geraci Action"). Specifically, Defendants contend that the complaint in the First Geraci Action involved the same www.geracillp.com domain name that Plaintiffs contend Defendants herein converted; yet, the complaint in the First Geraci Action effectively pled that Plaintiffs do not own the domain name. (Dem. at 1:15-2:2.)